

1 ENGROSSED SENATE
2 BILL NO. 1655

By: Stanley of the Senate

3 and

4 Miller of the House

5
6 An Act relating to the Oklahoma Adoption Code;
7 amending 10 O.S. 2021, Section 7505-1.1, which
8 relates to confidential character of hearings and
9 records; modifying applicability of certain
10 provisions; defining terms; updating statutory
11 language; and declaring an emergency.

12 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

13 SECTION 1. AMENDATORY 10 O.S. 2021, Section 7505-1.1, is
14 amended to read as follows:

15 Section 7505-1.1. A. Unless otherwise ordered by the district
16 court exercising jurisdiction over the adoption proceeding, all
17 hearings held in proceedings pursuant to the Oklahoma Adoption Code
18 shall be confidential and shall be held in closed court without
19 admittance of any person other than interested parties and their
20 counsel.

21 B. All papers, records, and books of proceedings in adoption
22 cases and any papers, records, and books relating to such
23 proceedings:

24 1. Shall be kept as a permanent record of the court and
maintained in a separate file by the court clerk; and

1 2. Shall be confidential and shall not be open to inspection or
2 copy except as authorized in Sections 7504-1.2, 7505-3.2, 7505-6.6,
3 7508-1.2 and 7508-1.3 of this title or upon order of a court of
4 record for good cause shown.

5 C. Upon application and notice to the person or agency in whose
6 possession the records being sought are held, and for good cause
7 being shown, any court of record may, by written order reciting its
8 findings, permit the necessary information to be released, or may
9 restrict the purposes for which it shall be used. The findings
10 shall include the reasons the information being sought cannot be
11 obtained through the methods authorized by Sections 7504-1.2, 7505-
12 3.2, 7505-6.6, 7508-1.2 and 7508-1.3 of this title.

13 D. The provisions of this section shall not prohibit ~~persons~~:

14 1. Persons employed by the court, the Department of Human
15 Services, a child-placing agency, an attorney participating or
16 assisting in a direct placement adoption, or any physician,
17 minister, or other person or entity assisting or participating in an
18 adoption from providing partial or complete identifying information
19 between a biological parent and prospective adoptive or adoptive
20 parent if a biological parent and a prospective adoptive or adoptive
21 parent mutually agree to share specific identifying information and
22 each gives written, signed notice of their agreement to the court,
23 the Department of Human Services, the child-placing agency, or any
24

1 attorney participating or assisting in the direct placement adoption
2 pursuant to the Oklahoma Adoption Code; or

3 2. Persons employed by the Department of Human Services from
4 sharing the contact information of an adoptive parent of an adopted
5 child enrolled in the Children's Specialty Plan, and other relevant
6 information necessary for the continuity of care of the child, with
7 the contracted entity that administers the Children's Specialty
8 Plan. As used in this paragraph, the terms "Children's Specialty
9 Plan" and "contracted entity" have the same meanings as provided in
10 Section 4002.2 of Title 56 of the Oklahoma Statutes.

11 E. Any person in charge of adoption records or having access to
12 adoption records or information who discloses any information,
13 including, but not limited to, all records and reports relevant to
14 the case and any records and reports of examination of the minor's
15 parent or other custodian pertaining to an adoption proceeding,
16 contrary to the provisions of this section, upon conviction thereof,
17 shall be guilty of a misdemeanor.

18 SECTION 2. It being immediately necessary for the preservation
19 of the public peace, health or safety, an emergency is hereby
20 declared to exist, by reason whereof this act shall take effect and
21 be in full force from and after its passage and approval.

1 Passed the Senate the 26th day of March, 2026.

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3 _____
4 Presiding Officer of the Senate

5 Passed the House of Representatives the ____ day of _____,
6 2026.

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8 _____
9 Presiding Officer of the House
10 of Representatives